Public Announcement of the Colby-Park Tenant Union Formation

Request to Issac Scheinerman for Union Recognition and Meeting to Address Collective Concerns

1225 Park Avenue, Rochester, NY [Zip Code]

[Date Letter is sent/delivered] **[ROUGH DRAFT - for internal discussion purposes only]**

Issac Scheinerman

Founder and CEO of Rushmore Management

[street address], Lakewood, New Jersey

Dear Issac Scheinerman, CEO of Rushmore Management,

As our landlord, this letter serves as a formal notification regarding the formation of a majority-support tenant union at the Colby-Park Building at 1225 Park Avenue in Rochester, NY [Zip Code]. We, the residents of the Colby-Park , have collectively organized under the name Colby-Park Union to promote and protect the rights, interests, and welfare of all tenants in our community. We are owed dignified housing in sanitary, safe and habitable conditions. The reality of life at 1225 Park Ave is often the polar opposite of those qualities, and can no longer be tolerated. We are requesting the following… [summary of principles of the below demands in one sentence]

Union Recognition and Meeting to Address Our Collective Concerns

- We demand a meeting to scheduled in the next 7 days to review resolutions and possible action plans to solve our collective concerns right now and ongoing

Habitability, Cleanliness, and Maintenance

- **We demand that all residents are given manual control of all of their radiators within 30 days.**
    - It is not uncommon to see many Colby Park residents opening their windows on a day when the heating is on in a failed attempt to escape temperatures that sometimes reach 100 degrees. Residents have claimed small victories in getting the heat temporarily turned off by calling the office, however, this is not sustainable. Colby Park residents deserve control of their own heat
- **We demand that all mold and root causes of mold in the building are eliminated.**
    - We demand an independent mold expert is made available within 30 days to assess the entire building.Several tenants have experienced what appears to be black colored mold in their apartments. Rather than dismissing their health and safety concerns as ignorant guesswork or alarmism, a mold expert should be consulted in the interest of making timely repairs.
- **We demand that all common areas are cleaned at least once per week starting immediately.**
    - These common areas include doorway openings, entrances, hallways, and sidewalks. The various odors and sight of dried blood, trash and even broken glass causes great distress to many of your residents. Common cleaning methods of vacuuming, sweeping or mopping should be used and these areas should be free of trash. The laundry room can also be cleaned during these times, which allows the reporting employee to evaluate the state of your laundry provider.

The anonymous operator has been consistent in their failure to repair or sanitize any of the washers or dryers.

- **We demand that all lead-related safety violations are corrected within 30 days.**
    - There are at least 25 outstanding lead violations issued by the City of Rochester for Colby-Park. All of them are from 2025 with 2027 rapidly approaching. Not only is this against our city's code, lead is very bad for vital organs, and is especially dangerous to medically vulnerable populations. According to the World Health Organization, there were over 3.5 million lead-related deaths globally in 2023.
- **We demand that our plumbing is restored to fully-functional condition within 30 days.**
    - Nearly all tenant union members have made comments about their plumbing. Specifically the ability to quickly drain their sinks and bathtubs. Additionally, multiple tenants have reported leaks, which are often found in conjunction with mold.
    - The drain in the back alley where the garbage cans are kept is also in desperate need of maintenance. Its inability to drain properly regularly creates a gigantic, festering puddle that is not only disgusting, but cuts off a walking path for residents who wish to take their garbage out using the south entrance.
- **We demand that our electrical delivery is restored to a fully-functional, and usable condition within 30 days.**
    - Electricity in this building is at best, unreliable and should be evaluated within 30 days by a professional electrician. Nearly all residents have suffered a power outage when performing mundane tasks such as running a microwave and an air fryer at the same time. If this were the only problem, the situation might be workable, however, this is not the case. When tenants do have their circuit breaker 'popped' by a maintenance worker, they soon discover that a low-energy device has also overloaded the system, resulting in a need for another service call. Many residents have called the weekend answering service for such problems only to find that the on-call worker has deemed their call a "non-emergency." This is unacceptable, and workers may require retraining.
- **We demand that all outstanding code violations be rectified within 30 days.**
    - Colby-Park is notorious for code violations, and this needs to be corrected within one month.. As mentioned before, twenty-five of Colby-Park's 30 violations pertain to paint and lead safety while the remaining 5 are for other categories of serious violations. One of these is a lack of a Certificate of Occupancy. According to the City of Rochester's website, a Certificate of Occupancy is designed to "ensure the preservation of property and the protection of life," as well as to "diminish blight and provide quality housing." A Certificate of Occupancy is a crucial step towards achieving true housing justice desired by the Colby-Park Tenant Union.

Our Safety and Security

- **We demand an operational keypad system, cameras, and functionally secure mailboxes within 30 days. When packages are taken, Rushmore should immediately offer footage of the common area to local police.**

    - A failed attempt was made several months ago to fix the keypad system and remove the universal access code. This code appears to be known by a great deal of people that are not Colby Park residents, allowing them easy access. On several occasions, indigent people have been found asleep on the floor of common areas, causing many people a great deal of fear. For those wishing to gain unauthorized access to Colby Park that do not know the code, they must simply wait by the Colby Street entrance where the doors do not reliably latch, and then walk right in. From there, the intruder may take their fill of packages and mail, as the mailboxes do not lock or in many cases, do not even latch. All of this takes place under cameras that are not utilized for the benefit of the residents, but may or may not be recording them at all times for unknown purposes..

Rent and Services

- 2 year rent freeze and until all violations are have been corrected and the building has
    - as valid Certificate of Occupancy and Elevator Certificate of Inspection posted in the common ares
- Rent abatement/refund for $150 for every month a tenant has lived in the building without a valid Certificate of Occupancy
- As of October 22nd, "on-site laundry" is listed as an amenity on Colby Park's marketing website.

Next Steps

We anticipate a positive and timely response to our request for recognition and a meeting to jointly solve the issues and create shared solutions in our building. We believe that open dialogue and good faith engagement are essential to ensuring Colby-Park is a safe and well-managed community for all residents.

Sincerely,

The Colby-Park Tenant Union
1225 Park Avenue
Rochester, NY
[Contact info; could be an union email address]

Potential Issues with letter:

- Are we tenants or residents? Although the words may be interchangeable, it may be advisable to pick one or the other.